

CONTRACT AGREEMENT

No. /HĐCCDV – 2023

Between

I. PARTY A : TAN HOA LU INVESTMENT JOINT STOCK COMPANY– PHAT LINH HOTEL HA LONG MANAGED BY PRIVATE PALACE HOTEL

Address : A9, Lot 1, Ha Long Marine Boulevard, Bai Chay Ward, Halong City, Quang Ninh Province, Vietnam

Represented by : **Ông Felipe Gotor-Schäffer** Title:

(according to certificate of Attorney No. 04/2022/GUQ-THL)

Tax code : 5701864920

Phone number : (84-0203) 6503 299

Bank account : 0117101699999999

Account name : Công ty Cổ phần đầu tư Tân Hoa Lư

Bank name : MCP Phương Đông - Chi nhánh Thăng Long (OCB)

And

II. PARTY B : 365 TRAVEL AND INVESTMENT COMPANY LIMITED

Represented by : **Ms. Hoang Thi Mai Huong** Title: **Contracting Director**

Address : **No.108, G2 Thanh Cong Building, Ba Dinh Dist., Hanoi**

Phone number : **024 3835 4899**

Email : **info@365travel.asia**

Web : **www.365travel.asia**

Tax code : **0102126682**

I. ROOM RATES

Room category	Size (m ²)	No. of room	The contract rate is applied for the Inbound market (VND)		
			Low season 2/1/2023 - 28/2/2023 1/6/2023 - 31/8/2023	High season 1/3/2023 - 31/5/2023 4/9/2023 - 30/12/2023	Peak season 1/1/2023 20 – 28/1/2023 24 – 31/12/2023
Deluxe City View	36	165	1,400,000	1,700,000	2,700,000
Deluxe Ocean View	39	115	1,800,000	2,100,000	3,100,000
Premium King	56	19	2,100,000	2,400,000	3,400,000
Executive	65	6	2,900,000	3,200,000	4,200,000
Suite Ocean	65	20	3,100,000	3,400,000	4,400,000

All rates quoted in this contract are:

- Confidential between both parties.
- Valid from 1/1/2023 – 31/12/2023.
- Quoted in Vietnam Dong (VND), inclusive of government tax & service charges. Any taxes introduced or increased during the validity of this Agreement will be additional to the above rates.
- Included breakfast for 1 or 2 guests per room, in-room tea and coffee, 2 bottles of mineral water, indoor swimming pool, gym room.
- Nett, non-commissionable and quoted on a per room, per night basis, unless otherwise stated.
- Based on single, double, or twin occupancy using existing bedding.
- Applicable to FIT bookings. Available for group bookings, subject to availability. A Group consists of 8 or more paid rooms.
- Rates are not to be published or sold as Nett Rates at any time. The room rate on TA's displayed on the website or publish channels must be the same or higher than the room rate on the Hotel's official website. Except for cases where the room rate is sold in combination with other services as a 'price package'.
- Two (02) nights minimum stay required for Public Holiday based on the dates mentioned above

II. SPECIAL OFFER

Room type	Value-add	Validity	Black out date
All room types	Early bird discount: • 10% for booking confirmed and fully paid 21 days prior to the arrival date • 12% for booking confirmed and fully paid 30 days prior to the arrival date • 15% for booking confirmed and fully paid 45 days prior to the arrival date	Year-round	Peak season
All room types	Long stay discount: • 10% for booking stay 5 consecutive nights • 15% for booking stay 7 consecutive nights • 18% for booking stay 15 consecutive nights • 25% for booking stay 30 consecutive nights	Year-round	Peak season

III. CHILD POLICY AND EXTRA PERSON

- Accommodation and breakfast free of charge for a maximum of 02 children under 06 years sharing parents' room and utilizing existing bedding.
- Children surcharge (6 – 11 years old): VND 150,000 Nett/child/night and maximum 2 children per room.
- Children from 12 years will be charged VND 550,000 Nett including extra bed and breakfast.

IV. CHECK IN/ CHECK OUT

- Check-in time is at 14:00 and check-out time is at 12:00 noon time
- Any early check-in and late check-out are subject to availability on that day.

Check in before 7 AM	: Applied 100% charge
Check in between 7 AM – 12 AM	: Applied 50% charge
Check out between 12 PM – 6 PM	: Applied 50% charge
Check out after 6 PM	: Applied 100% charge

V. RESERVATION PROCEDURES

- The Travel agency must make a request for any bookings at the Hotel in writing directly with the Hotel prior to the individual leisure customers' arrival date. Requests for bookings

are compulsory and must mention this Agreement in order for the Contract Rate to be applied.

- Reservations should not be considered as confirmed until the Travel agency receives confirmation in writing from the Hotel. Telephone availability checks are not considered as a commitment for the reservation.
- Party B must notify Party A in advance if there is a need for guests to early check-in or late check-out. Approval will be subject to Party A's room availability and additional fees will be charged.
- Reservation contact: Tel: +84 2036 503 289
Email: rsvn@phatlinhhotel.com

VI. PAYMENT AND CANCELLATION POLICY

- Unless prior credit facilities have been established with the Hotel, the Operator shall make a full prepayment for all bookings at least 7 days prior to the individual leisure customer's expected date of arrival at the Resort.
- If the booking is confirmed less than 7 days prior to the individual leisure customer's expected date of arrival at the Hotel, the Operator shall make full prepayment within 03 days of receipt of the pro-forma invoice, or such shorter time to ensure that Hotel has received full prepayment for all bookings before the Individual leisure customer arrives at the Resort.

Bank account

Account name: **CÔNG TY CỔ PHẦN ĐẦU TƯ TÂN HOA LƯ**

Account number: 0117101699999999 (VND)

Bank name: Orient Commercial Joint Stock Bank – Cau Giay Branch

- All cancellations or reductions in the number of rooms booked must be made in writing to the Hotel and the Business Partner must seek confirmation that the cancellation and/or reduction has been received by the Hotel
- During busy periods, the Hotel reserves the right to impose a stricter cancellation policy. This will be communicated to the Business Partner at the time of booking.
- The minimum period of notice to notify the Hotel of a cancellation is

	Cancellation time	Surcharge
High season	Before 14 days	FOC
	8 – 13 days before arrival	Charge 50% on the first night
	Under 7 days before arrival	Full charge
Low season	Before 7 days	FOC
	4 – 6 days before arrival	Charge 50% on the first night
	Under 4 days before arrival	Full charge
Peak season	Before 30 days	FOC
	21 – 29 days before arrival	Charge 50% on the first night
	Under 21 days before arrival	Full charge

- No-show will incur full nights charge all season

VII. OVER-BOOKING

The Hotel will make every attempt to avoid overbooking; however should this occur the Hotel will:

- Jointly agree with the Business Partner on a suitable alternative property at a comparable price;
- Where possible, advise the Business Partner in advance of the overbooking.

VIII. FORCE MAJEURE

By signing of the Agreement, both parties shall not be held liable or responsible for failure to execute arrangements specified herein directly or indirectly occurred by or through or in consequence of war, strikes, riots, and Acts of God or conditions beyond the control of both parties. The parties will negotiate on the handling of arising cases with costs in the spirit of mutual benefit within 10 days after the force majeure event occurs in writing.

IX. GENERAL TERMS

- This contract and the attached appendices are an integral part.
- This contract is made on the basis of discussing the principles of ensuring the rights and interests of both Parties. The party read, checked and recognized that they have clearly understood the provisions as well as the rights and obligations of each party in the contract.

- All prices, terms and conditions provided in this contract are confidential. If Party B discloses the price to a third party or in any form or public it on the website for any purpose, Party A has the right to unilaterally terminate the contract.
- This Contract is valid from the date of signing to the end of December 31, 2023. The Contract is automatically liquidated when the Parties fulfil all obligations under the Contract.
- In case either Party requests to terminate the Contract ahead of time, it must notify the other Party in writing at least 30 days. Termination of the contract does not affect any provision in the contract for the resolution of disputes or any other term of the contract which will be fulfilled even after termination of the contract.
- This contract is made into 03 Vietnamese copies with the same legal effect, Party A keeps 02 copies, and Party B keeps 01 copy for implementation.

ĐẠI DIỆN BÊN A

ĐẠI DIỆN BÊN B

FELIPE GOTOR-SCHÄFFER

HOÀNG THỊ MAI HƯƠNG